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Case Number: 26STCV03176 Hearing Date: August 3, 2026 Dept: 224

Jose Melendez v. General Motors, LLC

TENTATIVE RULING

The Court OVERRULES Defendant's Demurrer to the First Amended Complaint. The Motion to Strike punitive damages is DENIED.

Defendant's Answer is due in 30 days.

On its own motion, the Court continues the Case Management Conference on August 28, 2026, to October 5, 2026 at 8:30 a.m. given Defendant's Answer is due after the CMC.

ANALYSIS

INTRODUCTION

This is a lemon law case. On July 14, 2022, Plaintiffs Jose Melendez and Isabel Melendez ("Plaintiffs") purchased a 2022 Cadillac Escalade ESV ("Vehicle") from Cadillac of Beverly Hills. (FAC, ¶ 5.) Plaintiffs allege that Defendant General Motors, LLC ("Defendant") has been aware of the Defective Engine since at least early 2007 and has continued to actively conceal it, exposing Plaintiffs to safety risks and diminishing the value of the Vehicle. (Id. at ¶¶ 18-19.)

On January 30, 2026, Plaintiffs filed a Complaint. On March 3, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Consumer Warranty Act; (2) Breach of Express Warranty under the Song-Beverly Consumer Warranty Act; (3) Fraudulent Concealment; and (4) Violation of Civil Code Section 1750 et seq.

On April 10, 2026, Defendant filed this Demurrer to Plaintiffs' First Amended Complaint and Motion to Strike Punitive Damages.

On June 18, 2026, Plaintiffs filed an opposition to the Demurrer and the Motion to Strike.

On July 27, 2026, Defendant filed a reply in support of the Demurrer and Motion to Strike.

DEMURRER

LEGAL STANDARD

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.” (Code Civ. Proc. [AW13.1]§ 430.10.) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th[AW14.1] 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.* [AW15.1]; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

DISCUSSION

Defendant demurs to the third cause of action for fraudulent concealment on the grounds that it is barred by the statute of limitations, fails to state facts sufficient to establish the action, and fails to allege a transactional relationship giving rise to a duty to disclose. Defendant also demurs to the fourth cause of action for violation of the Consumer Legal Remedies Act (“CLRA”) because it is barred by the statute of limitations, it fails to set forth sufficient facts, and it is barred by Plaintiffs’ failure to provide proper notice.

A. Statute of Limitations

Defendant argues the three-year statute of limitations for fraud bars the cause of action for fraudulent concealment and violation of the CLRA. Defendant contends that the Plaintiff bought the Vehicle on July 14, 2022, and should have filed their claim no later than July 14, 2025. Plaintiffs did not file their Complaint until March 2026.

In opposition, Plaintiffs argue that, had they known about the fraudulent concealment violation on the date the Vehicle was purchased (July 14, 2022), Plaintiffs would not have purchased the Vehicle. Plaintiffs also argue that they do not allege that they were aware of the problems with the Defective Engine at the time of purchase; rather, Defendant has made this fact up. Plaintiffs allege that they could not have discovered the defective nature of the engine until shortly before the litigation was commenced. Plaintiffs allege the first time they discovered the defect was on February 1, 2023. The Complaint was filed on January 30, 2026, not in March 2026.

To sustain a demurrer on the statute of limitations, the running of the statute must appear clearly and affirmatively on the face of the complaint. (*Geneva Towers Ltd. Partnership v. City of San Francisco* (2003) 29 Cal.4th 769, 781.) “[I]t is not enough that the complaint might be time-barred. [Citation.]” (*Ibid.*) “The general rule is that the statute of limitations begins to run

when the wrongful act is done, even though the plaintiff is ignorant of his or her cause of action or of the identity of the wrongdoer.” (Snow v. A. H. Robins Co. (1985) 165 Cal.App.3d 120, 127.) The running of the statute of limitations may be postponed on certain causes of action until the time of discovery of the facts. (Ibid.) “With respect to actions based on fraud, the statute of limitations is tolled whenever plaintiff is able to show the defendant fraudulently concealed facts which would have led him to discover his potential cause of action.” (Id. at pp. 127-128.)

The statute of limitations for an action for relief on the ground of fraud or mistake is three years and the cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. (Code Civ. Proc., § 338, subd. (d).) Similarly, the statute of limitations for violation of the CRLA is also three years. (Civ. Code, § 1783.) The statute of limitations on a CLRA claim does not begin to run until the car buyer knows or appreciates his injury. (See Medina v. St. George Auto Sales, Inc. (2024) 103 Cal.App.5th 1194, 1210.)

Plaintiffs filed the Complaint on January 30, 2026, not in March 2026. Plaintiffs allege they purchased the Vehicle on July 14, 2022. (FAC, ¶ 5.) Plaintiffs allege that they would not have purchased the Vehicle or would have paid substantially less had they known about the Defective Engine prior to or at the time of the purchase on July 14, 2022. (Id. at ¶ 24.) Plaintiffs allege that the Engine Defect was reported on February 1, 2023. (Id. at ¶ 42.)

Plaintiffs have sufficiently alleged that they did not discover the fact that Defendant had fraudulently concealed the defect or appreciate their injury on the date of purchase because, had Plaintiffs known of the fraudulent concealment of the defect, Plaintiffs would not have purchased the Vehicle. Thus, the statute of limitations began to run on February 1, 2023, not July 14, 2022. Three years from February 1, 2023 would be February 1, 2026. The Complaint was filed January 30, 2026. Thus, the claims are not time-barred based on the Complaint.

The demurrer to the third and fourth causes of action based on the statute of limitations is overruled.

B. Fraudulent Concealment

Defendant contends that the third cause of action fails to state sufficient facts and fails to allege a transactional relationship giving rise to a duty to disclose. Defendant argues that Plaintiffs failed to plead specific facts that Defendant allegedly failed to disclose, allegations that Defendant knew of those facts when Plaintiff purchased the Vehicle, or what materials Plaintiffs reviewed and relied upon in purchasing the Vehicle. Also, the Complaint does not allege that Plaintiffs purchased the Vehicle directly from Defendant, nor have Plaintiffs alleged any specific facts showing that the dealer from which they purchased their Vehicle was Defendant's agent.

In opposition, Plaintiffs argue that they have adequately pled each element of fraudulent concealment. Also, Plaintiffs have alleged a transactional relationship because they alleged that Defendant backed the Vehicle with warranties, that Defendant advertises and markets its' vehicles to the public through press releases, marketing brochures, and websites, and that Defendant's authorized dealerships are Defendant's agents for the purposes of selling and marketing Defendant's vehicles to consumers.

Fraud based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1256, 1384.)

An essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Id. at p. 314.) “There are ‘four circumstances in which nondisclosure or

concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (Id. at p. 311.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187 (Hoffman).) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

The FAC alleges that Defendant has been aware of the Defective Engine since at least early 2007 and refused to disclose the Defective Engine’s existence. (FAC, ¶¶ 18-19.) Plaintiffs allege that Defendant intentionally concealed information from Plaintiffs and that “at no time were Plaintiffs told or made aware, either publicly or privately, that the Vehicle was equipped with the Defective Engine.” (Id. at ¶ 39.) Plaintiffs allege that Defendant had exclusive and superior knowledge of the Defective Engine. (Id. at ¶ 20.) Plaintiffs allege they would not have purchased the Vehicle had they been made aware of the defects. (Id. at ¶ 40.) Plaintiffs alleged that they were damaged by Defendant’s conduct. (Id. at ¶¶ 25-27.) These allegations are specific enough to allege the information that was concealed and the danger posed. (See Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199-1200.)

As to the transactional relationship, the FAC alleges that Plaintiffs purchased the Vehicle from Cadillac of Beverly Hills, an authorized dealership of Defendant. (FAC, ¶¶ 5-6.) The FAC alleges that sales of new motor vehicles to consumers take place exclusively through Defendant’s authorized dealerships. (Id. at ¶ 6.) The FAC also alleges that, in order to do business with Defendant, Plaintiffs were required to purchase the Vehicle from one of Defendant’s authorized dealerships. (Ibid.) Furthermore, Defendant provides all Cadillac customers, including Plaintiffs, with a warranty. (Id. at ¶ 9.) Plaintiffs allege that the dealers are agents of Defendant. (Id. at ¶ 11.) Thus, because Plaintiffs have alleged that Plaintiffs purchased the Vehicle from an authorized dealer and agent of Defendant with a warranty provided by Defendant, Plaintiffs have adequately alleged a transactional relationship from which a duty to disclose arises. (See Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 [finding the allegations sufficient where plaintiffs alleged they bought the car from a dealership and facts that the dealership was an agent of defendant].)

Accordingly, the demurrer to the third cause of action is OVERRULED.

C. Violation of the CLRA

Defendant contends the fourth cause of action fails to state sufficient facts and is barred by Plaintiffs’ failure to provide proper notice. Defendant contends that no letter or notice was sent to Defendant that qualifies under section 1782(a). Defendant argues that Plaintiffs admit this fact in the Complaint. Nor is Plaintiffs’ action seeking injunctive relief. Also, the cause of action fails because Plaintiff did not identify what Defendant misrepresented. Defendant is not legally responsible to Plaintiffs for representations that the dealership sales personnel may have made.

In opposition, Plaintiffs argue that CLRA notice does not need to be sent before commencement of a lawsuit. Plaintiffs also argue that they seek injunctive relief and will amend the claim to state a claim for damages. Plaintiffs allege that the FAC states that notice was given in writing and sent on January 30, 2026. Also, no heightened pleading requirement is necessary for CLRA claims, even if they are based in fraud. Moreover, Plaintiffs allege detailed representations made by Defendant that form the basis of the alleged violations of the CLRA.

i. Notice Requirements

Civil Code section 1782(a) requires: “Thirty days or more prior to the commencement of an action for damages pursuant to this title, the consumer shall do the following:

(1) Notify the person alleged to have employed or committed methods, acts, or practices declared unlawful by Section 1770 of the particular alleged violations of Section 1770.

(2) Demand that the person correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Section 1770.

The notice shall be in writing and shall be sent by certified or registered mail, return receipt requested, to the place where the transaction occurred or to the person's principal place of business within California."

(Civ. Code, § 1782, subd. (a).) "An action for injunctive relief brought under the specific provisions of Section 1770 may be commenced without compliance with subdivision (a). Not less than 30 days after the commencement of an action for injunctive relief, and after compliance with subdivision (a), the consumer may amend his or her complaint without leave of court to include a request for damages. The appropriate provisions of subdivision (b) or (c) shall be applicable if the complaint for injunctive relief is amended to request damages." (Civ. Code, § 1782, subd. (d).)

The FAC states: "Plaintiffs complied with the notice provisions of Civil Code section 1782 by notifying Defendants on January 30, 2026, of the particular alleged violations of Civil Code section 1770 and demanding that it correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Civil Code section 1770. The notice was given in writing and was sent by certified mail, return receipt requested, to Defendants. Defendants have failed, within thirty (30) days of receipt, to respond to Plaintiffs' demand and/or provide Plaintiffs with an appropriate correction, repair, replacement, relief, cure or any other remedy." (FAC, ¶ 167.) Plaintiffs seek injunctive relief and damages. (Id. at ¶¶ 171-174.) Thus, Plaintiffs have alleged facts sufficient to demonstrate that they have complied with the notice requirements.

Accordingly, the demurrer to the fourth cause of action is overruled on these grounds.

ii. Sufficiency of Pleadings

An omission is actionable under the CLRA if the omitted fact is (1) "contrary to a [material] representation actually made by the defendant" or (2) is "a fact the defendant was obliged to disclose." (Gutierrez v. Carmax Auto Superstores California (2018) 19 Cal.App.5th 1234, 1258.) Failure to disclose a fact constitutes a deceptive practice actionable under the CLRA when "the defendant is the plaintiff's fiduciary, when the defendant has exclusive knowledge of material facts not known or reasonably accessible to the plaintiff, and when the defendant actively conceals a material fact. In addition, the duty to disclose exists 'when the defendant makes partial representations that are misleading because some other material fact has not been disclosed.' In the context of the CLRA, a fact is 'material' if a reasonable consumer would deem it important in determining how to act in the transaction at issue." (Ibid.) In other words, a defendant has a duty to disclose when the fact is known to the defendant and the failure to disclose it is " 'misleading in light of other facts ... that [the defendant] did disclose.' " (Ibid.) Causes of action under the CLRA must be stated with reasonable particularity, which is a more lenient pleading standard than is applied to common law fraud claims. (Id. at p. 1261.)

Here, the FAC alleges that Defendant sold Plaintiffs the Vehicle knowing that the Defective Engine did not and could not conform to the standard, quality, and/or grade of the vehicles it was advertising. (FAC, ¶ 157.) The FAC alleges Defendant knew by 2007 that the Engine Defect could not be fixed. (Id. at ¶ 159.) The FAC alleges that Defendant entered a warranty with Plaintiffs ensuring proper operation and performance of the Vehicle and its components. (Id. at ¶ 162.) The FAC alleges the Defendant represented to Plaintiffs and other consumers that the Defective Engine had "more power", increasing fuel economy while not reducing performance and durability. (Id. at ¶ 152.) A salesperson for an authorized dealership and agent of Defendant represented quality, durability, fuel efficiency, and impressive performance of the Vehicle. (Id. at ¶ 38.) Plaintiffs also reviewed Defendant's advertising and marketing materials prior to purchase and none of them disclosed the ongoing Defective Engine. (Id. at ¶ 104.) Plaintiffs list marketing statements in the FAC. (See id. at ¶¶ 91-95.) The FAC alleges that Defendant knew that the Vehicle, equipped with the Defective Engine, did not have the characteristics, uses, and benefits Defendant represented. (Id. at ¶ 153.) Plaintiffs allege that the Defective Engine was a safety-related concern that obligated Defendant to disclose it to all consumers. (Id. at ¶ 104.) Plaintiffs have alleged facts which demonstrate that the defect

implicated safety concerns important to the reasonable consumer, that Defendant marketed the Vehicle in good condition, that Defendant was aware of the Engine Defect, and that Defendant and its agents misrepresented or concealed facts about the defect. Thus, the Court finds that these allegations are sufficient to state a duty to disclose exists because Defendant and its agents have misrepresented the safety and quality of the Vehicle. (See Gutierrez, supra, 19 Cal.App.5th at pp. 1261-1262.)

Accordingly, the demurrer to the fourth cause of action is OVERRULED on these grounds.

MOTION TO STRIKE

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Defendant moves to strike the demand for punitive damages in the Prayer for Relief.

Defendant argues that punitive damages are not recoverable for Song-Beverly Consumer Warranty Act claims and that the FAC fails to state facts sufficient to support punitive damages. Defendant argues that Plaintiffs have failed to allege facts to justify the demand for punitive damages. Defendant incorporates arguments from the Demurrer to argue that neither the cause of action for fraudulent concealment nor the cause of action for violation of the CLRA state sufficient causes of action and, therefore, cannot support punitive damages.

In opposition, Plaintiffs contend they do not seek punitive damages for the Song-Beverly Consumer Warranty Act claims. Plaintiffs argue that they have specifically alleged that Plaintiffs relied on statements made during the purchase process by Defendant's agents, that Defendant and its agents omitted disclosing any information about the Defective Engine, and that Defendant's authorized technician represented to Plaintiffs that the Vehicle was operating as intended and safe to drive. Plaintiffs argue the defects were a safety hazard and that Defendant intentionally defrauded Plaintiffs to enrich itself at their expense.

As an initial matter, the Court agrees that punitive damages are not recoverable for Song-Beverly Consumer Warranty Act claims. (See *Covert v. FCA USA, LLC* (2022) 73 Cal.App.5th 821, 828.) Instead, the Song-Beverly Consumer Warranty Act allows for civil penalties. (Civ. Code, § 1794.) Accordingly, punitive damages may not properly be sought for the Song-Beverly Consumer Warranty Act claims. However, while the Prayer for Relief requests punitive damages generally, the specific allegations for the Song-Beverly Consumer Warranty Act claims do not show that Plaintiff is seeking punitive damages for those claims. Accordingly, the motion to strike punitive damages as to the Song-Beverly Consumer Warranty claims is moot.

As to the remaining causes of action for fraudulent concealment and violation of the CLRA, the Court has overruled the Demurrer. Thus, the Court must determine whether the FAC state facts sufficient to support punitive damages.

Civil Code section 3294 authorizes the recovery of punitive damages in non-contract cases where "the defendant has been guilty of oppression, fraud, or malice" (Civ. Code § 3294(a).) "'Malice' means conduct which is intended by the

defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id., § 3294(c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(2).)

“‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id., § 3294(c)(3).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Punitive damages thus require more than the mere commission of a tort. (See Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).) Conclusory characterizations of defendant’s conduct as willful, intentional or fraudulent is a patently insufficient statement of the necessary factual grounds for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

The Court finds that Plaintiffs have not merely pled conclusory statements and have sufficiently pled facts to support a finding of punitive damages. As pointed to in the Demurrer, the FAC alleges that Defendant sold Plaintiffs the Vehicle knowing that the Defective Engine did not and could not conform to the standard, quality, and/or grade of the vehicles it was advertising. (FAC, ¶ 157.) The FAC alleges Defendant knew by 2007 that the Engine Defect could not be fixed. (Id. at ¶ 159.) The FAC alleges that Defendant entered a warranty with Plaintiffs ensuring proper operation and performance of the Vehicle and its components. (Id. at ¶ 162.) The FAC alleges the Defendant represented to Plaintiffs and other consumers that the Defective Engine had “more power”, increasing fuel economy while not reducing performance and durability. (Id. at ¶ 152.) A salesperson for an authorized dealership and agent of Defendant represented quality, durability, fuel efficiency, and impressive performance of the Vehicle. (Id. at ¶ 38.) Plaintiffs also reviewed Defendant’s advertising and marketing materials prior to purchase and none of them disclosed the ongoing Defective Engine. (Id. at ¶ 104.) Plaintiffs list marketing statements in the FAC. (See id. at ¶¶ 91-95.) The FAC alleges that Defendant knew that the Vehicle, equipped with the Defective Engine, did not have the characteristics, uses, and benefits Defendant represented. (Id. at ¶ 153.) Plaintiffs allege that the Defective Engine was a safety-related concern that obligated Defendant to disclose it to all consumers. (Id. at ¶ 104). The Court finds that these allegations sufficiently allege facts for punitive damages.

Accordingly, the Motion to Strike punitive damages is DENIED.

CONCLUSION

The Court OVERRULES Defendant’s Demurrer to the First Amended Complaint. The Motion to Strike punitive damages is DENIED.

Defendant’s Answer is due in 30 days.

On its own motion, the Court continues the Case Management Conference on August 28, 2026, to October 5, 2026 at 8:30 a.m. given Defendant’s Answer is due after the CMC.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order or take the matter off calendar at its discretion.